

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, NOVEMBER 14, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JPMORGAN CHASE BANK N.A. vs. BRANDON STEWART
Case No. CL24-02763**

Motion to Compel

TENTATIVE RULING

Defendant's motion for default judgment is denied.

"Entry of default by the court clerk is a statutory prerequisite to both a clerk's default judgment [citation] and a default judgment by the court [citation]." (*People v. One 1986 Toyota Pickup* (1995) 31 Cal.App.4th 254, 259.) While Defendant lodged a request for entry of default with the court along with his motion papers, the request was merely stamped "received" and the clerk took no action on the request.

**CAPTIAL ONE, N.A. vs. LAURICE LOVE
Case No. CL24-04701**

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of

attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant at an address at which personal service of summons and complaint had been completed over a year earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

The court therefore continues hearing to March 5, 2026, at 9:00 a.m. in Dept. 7. Plaintiff is directed to effect service of the motion papers and notice of continued hearing in the manner required for service of summons and complaint, with such service completed at least 16 court days prior to the continued hearing date.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY
Case No. CU23-02408

CUEVA's Demurrer

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing the Court's tentative ruling is as follows.

Defendant D. CUEVA ("CUEVA," erroneously sued as WARDEN OF CALIFORNIA MEDICAL FACILITY) demurs to Plaintiff TROY ANDERSON's complaint for negligence and intentional tort.

The court has not received opposition to the demurrer.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions,

deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. Plaintiff’s complaint does not state a cause of action against CUEVA. The complaint states that Plaintiff brought some of his concerns to CUEVA on April 22, 2022 and CUEVA agreed with Plaintiff that Plaintiff having to wear a control jumpsuit during emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff’s phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party’s pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Having not filed opposition, Plaintiff has not shown a reasonable possibility of amendment to cure identified defects in the complaint.

Conclusion. CUEVA’s unopposed demurrer is sustained without leave to amend.

SARAH MARIE TIGER vs. CARL LOUIS BION DANTES; ET AL.
Case No. CU24-00699

Plaintiff’s Motion to Compel DANTES’s Further Responses to Requests for Admission, Set Two

TENTATIVE RULING

Plaintiff SARAH MARIE TIGER moves to compel Defendant CARL LOUIS BION DANTES to further respond to thirteen requests for admission from her requests for admission, set two.

Meet and Confer Efforts. The court first considers the adequacy of the parties’ efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration “showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion” to compel. Plaintiff’s counsel’s attached declaration to the motion to compel further responses to requests for admission states that counsel served the discovery requests at issue on June 4, 2025 and received DANTES’s responses on June 18, 2025. (Declaration of Jesus Becerra in Support of Motion to Compel Further Responses to Requests for Production (“Becerra Dec.”) at ¶¶ 5-6, Exhibits 4-5.) Plaintiff’s counsel sent DANTES a meet and confer letter regarding his discovery responses on July 11, 2025. (*Id.* at ¶ 7, Exhibit 6.) DANTES wrote back on August 15, 2025. (*Id.* at ¶ 8, Exhibit 7.) DANTES provided some supplemental

responses on August 20, 2025. (*Id.* at ¶ 9, Exhibit 8.) The instant motion was filed on September 16, 2025.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].) The purposes behind the meet and confer requirement are to force the parties to reexamine their positions, and to narrow their disputes to the “irreducible minimum” before asking the court to resolve them. (Weil & Brown, Civil Procedure Before Trial, § 8:1159, pp. 8F-65 and 8F-66; See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1281, quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 [“‘informal resolution’ of discovery disputes ‘entails something more than bickering with (opposing counsel).’ Rather, the statute ‘requires that there be a serious effort at negotiation and informal resolution.’”])

Plaintiff’s efforts to meet and confer were not adequate. Plaintiff’s initial meet and confer letter was sufficiently detailed. However, Plaintiff did not attempt to reduce the parties’ disputes to the irreducible minimum before resorting to motion practice. DANTES’s response to the meet and confer letter demonstrates willingness to cooperate and provide further responses if certain requests were reissued. Notably, DANTES in fact further responded to requests for admission #47 and 48, but there is no evidence before the court that Plaintiff attempted to meet and confer on those requests before continuing to include them in the instant motion.

Conclusion. Plaintiff’s motion is denied due to insufficient efforts to meet and confer.

IN THE MATTER OF J.G. WENTWORTH ORIGINATIONS, LLC
Case No. CU25-09079

Petition for Approval for Transfer of Payment Rights

TENTATIVE RULING

The Parties are to appear.

KELSTIN GROUP, INC. vs. JAMIE LYNN LARA
Case No. FCM163685

Motion to Set Aside Default Judgment and Quash Service of Summons

TENTATIVE RULING

Upon further briefing, Defendant's motion to set aside default and default judgment and motion to quash service of summons is GRANTED.

Defendant's Motion to Dismiss is GRANTED.

Based upon the evidence presented, the Court finds that the Defendant was not validly served with the Summons and Complaint and that three years have now passed since the Plaintiff filed its Complaint.

The Court need not and does not make any finding on whether the "proof of service on file is false." (Defendant's supplemental brief, pg. 1:27)

TIANA PRATT vs. GEORGE WU; ET AL.
Case No. FCS059704

Motion to Set Aside Default

TENTATIVE RULING

The Parties are to appear.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlhXJTcGxIVHRXZz09>

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